
Appeal Decision

Site visit made on 4 August 2026

by **J Heppell BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 21st September 2026

Appeal Ref: 6006517

Site I, The Mill, Catteshall Road, Godalming GU7 1NJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Rushmon Homes against Waverley Borough Council.
 - The application Ref is WA/2023/02694.
 - The development proposed is erection of a building comprising 9 residential units together with car parking and associated works in lieu of planning permission WA/2002/2310.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The appeal was accompanied by amended plans which reduced the width of the building, reflecting an earlier amended plan which was submitted to the Council prior to the determination of the application in response to an objection from the Council's Principal Tree Officer. As harm to arboricultural interests did not form part of the reasons for refusal, the Council's decision appears to have been based on the amended plans. Furthermore, in response to the Council's concerns about living conditions, the amended plans which accompanied the appeal enlarged balconies and added windows. These amendments were not before the Council at the time of its decision.
3. The Council objected to the plans being considered as part of the appeal on the basis that appeals are not intended to evolve the design of schemes. I have had regard to the *Planning Appeals – Procedural Guide*, which advises that when considering whether to accept amended plans, the two tests set out in the judgement in *Holborn Studios Ltd v The Council of the London Borough of Hackney (2018)* should be applied: that is, whether the proposed amendments involve a substantive difference to the application; and, whether they would cause procedural unfairness to anyone involved in the appeal.
4. The amendments sought to resolve technical issues relating to trees, outdoor space and sunlight, and were minor in the context of the proposal. It is not in dispute between the main parties that no interested parties were prejudiced by the changes and, having reviewed the comments of interested parties, I agree. The amendments therefore satisfy the two tests, and I have determined the appeal on the basis of the amended plans. For the avoidance of doubt, these plans are: P2023/11.13 Rev E (Elevations), P2023/11.21 Rev G (Site/Block Plan), P2023/11.22 Rev D (Floorplans) and P2023/11.29 Rev C (Site Comparison Plan).

The appellant confirmed, in response to the Council's concern, that Drawing No P2023/11.21 Rev G did not alter the setback of the development from the river.

5. The Council's reason for refusal which alleged an adverse impact on the character and appearance of the area included reference to a lack of defensible space to the northeastern elevation. As this concern related to living conditions, I have addressed it alongside the Council's other concerns regarding living conditions.
6. Following the submission of the appeal, the revised National Planning Policy Framework (Framework) was published on 17 August 2026. The main parties were afforded the opportunity to comment on the implications of the new Framework for the proposal.

Main Issues

7. The main issues in this appeal are:
 - the effect of the proposal on the character and appearance of the area with particular reference to an Area of Strategic Visual Importance (ASVI);
 - the effect of the proposal on flood risk;
 - the effect of the proposal on the integrity of a Site of Nature Conservation Importance (SNCI); and
 - whether the proposal would provide suitable living conditions for future occupiers with particular reference to play space, outdoor space, sunlight and privacy.

Reasons

Character and appearance

8. The site is located within a settlement boundary. The land to the south and east is built up, whilst to the north and west an area known as the Lammas Lands is open. The Lammas Lands form the floodplain of the River Wey and are designated as part of the Godalming ASVI, which includes the rear portion of the site.
9. The supporting test to Policy RE3 of the Waverley Borough Local Plan Part 1: Strategic Policies and Sites February 2018 (LPP1) explains the importance ASVIs play in maintaining the character of the main settlements, which can be either because they play an important role in preventing their coalescence or because they are areas of open land that stretch into the urban area. The policy seeks to maintain and enhance the appearance of ASVIs, and requires development proposals to demonstrate that they would not be inconsistent with this objective.
10. The Godalming ASVI includes the land between Godalming and Farncombe. The boundary between the ASVI and the urban area of Godalming is mostly regular, but in places extends into the urban area along the course of the River Wey. One such instance occurs where two branches of the River Wey form a triangular area of largely undeveloped land, whose tree cover forms a backdrop to the River Wey and the parallel River Wey Navigation. The site is situated next to this triangular area of land.

11. The historic mapping in the appellant's heritage impact assessment identifies that the part of the appeal site located within the ASVI was formerly a spur of the River Wey. It has an open and undeveloped appearance, comprising low level vegetation and scattered trees, in contrast with the part of the site outside the ASVI, which according to the historic mapping previously contained buildings and is now used for car parking. It is not in dispute between the main parties that the front portion of the site is previously developed land but, although reference is made in the appellant's submissions to the rear portion being used as a storage yard area and to deposit dredgings from the river, on the basis of the evidence before me it is unclear whether it was previously developed.
12. The site, along with the adjacent former mill buildings, benefits from planning permission for a new office building, conversion of existing buildings to offices, and 14 new and converted dwellings¹. The other elements of the permission have subsequently been implemented, and as a consequence planning permission for a new office building on the site remains extant. The appellant contended, by reference to the judgement in *Mansell v Tonbridge and Malling BC & others [2017] EWCA Civ 1314*, that there is a real prospect of this fallback development being implemented.
13. In response, the Council argued that that an office building constructed under the original permission would not satisfy current building regulations and moreover would increase flood risk. Whilst these factors would not necessarily prevent the permission from being implemented, they make it less likely that it would happen. More fundamentally, the two decades or more which have elapsed since the permission was granted strongly suggest that, whilst there is a greater than theoretical possibility of the development taking place, the reality is that if there was a real prospect of it being implemented, it would have been happened by now. I therefore ascribe limited weight to the fallback position.
14. I have not been advised whether the same policies apply now as those which were in force when the original permission was granted. The office building would have had three floors of accommodation and a comparable massing to the proposal, and would have encroached a similar amount into the ASVI in terms of ground coverage. However, whereas the office building would have been located near the converted mill buildings, the proposed building would be positioned significantly closer to the River Wey and the Lammas Lands. Therefore, even though the Council considered that the office building would have had an acceptable relationship with the ASVI, the proposal's impact on the ASVI would be greater owing to its closer proximity to the river.
15. The character area assessment which forms part of the Godalming & Farncombe Neighbourhood Plan 2017-2032 April 2019 (NP), which is a material consideration, places the site within the Catteshall Lane character area, whose most significant landmark is identified as the boat house beside the River Wey, and whose most important view is from the bridge over the River Wey close to the boat house in both directions. Views of the river and the sweeping slopes of Godalming are described as making up a beautiful landscape.
16. Whilst part of the building would be positioned close to the current river bank, the proposed realignment of the bank would result in the building being set back from

¹ LPA reference WA/2002/2310

the river. This realignment is not objectionable since, to judge from the historic mapping, it would complete the infilling of the spur of the river which originally crossed the site.

17. The appellant has supplied photoviewpoints of the site from a number of vantage points, which show that the proposal would be partly screened from the River Wey and the Lammas Lands by a two storey building next to Catteshall Road which the appellant refers to as Boathouse Inn and which the Council calls Riverside Cottage. Even so, the proposal would be clearly visible above the adjacent single storey boat house, and would significantly urbanise both its setting and that of the river and dominate views of the boat house which is currently seen against the backdrop of the former mill buildings and is framed by trees. Whilst planting would be undertaken to mitigate for the loss of existing trees, it could not completely screen the building.
18. The appellant highlighted that there are other buildings in close proximity to the site which form part of the river's setting. The tall former mill buildings adjacent to the site are located further back from the river and fall outside the ASVI, and do not dominate the view from the river in the same way as the proposal would. Similarly, the houses on the opposite side of Catteshall Road from the site are outside the ASVI and are less visually imposing.
19. The appellant drew my attention to examples of recent residential development to the west of the site next to the River Wey, but these sites appear to be outside the ASVI, and the developments broadly reflect the grain of the urban area. They do not provide a reliable guide regarding the appropriateness of the proposal in relation to the ASVI.
20. The proposed building would have a residential appearance, contrasting with the historic mill buildings next to the site, and also with the unimplemented office building whose design bears some similarities to the mill buildings. Whilst a residential design is not in itself objectionable, when applied to a building of the scale proposed the outcome would be harmful to the ASVI. I have had regard to the fact that the proposed height of the building was reduced during negotiations with the Council, and the design modified, but the changes made do not overcome the concerns I have identified.
21. The River Wey and Lammas Lands, including the site and the former mill buildings, form part of the Godalming Navigations & River Wey Conservation Area (CA), which is focussed on the historic River Wey Navigation and the River Wey in multiple channels. The river's pastoral, low lying floodplain is characterised by irregular fields interspersed with woodland, and an absence of human settlement apart from canal buildings and industrial sites. The CA's significance derives from the contribution made by the River Wey Navigation, which was extended as far as Godalming in 1764, to the expansion of the town prior to the arrival of the railway. The surviving elements of canal engineering and architecture provide a record of the early stages of the industrial revolution, and the canal's subsequent evolution towards leisure use is exemplified by the boat house adjacent to the site.
22. The Council identified that, owing to the proposal's prominence and its encroachment into the rural setting of the boat house, it would result in a moderate degree of less than substantial harm to the CA. In accordance with the Framework, the Council weighed the harm against the public benefits, and

concluded that the provision of dwellings was a sufficient public benefit to outweigh the harm. Based on the evidence before me, I find no reason to disagree with the Council's reasoning. However, this does not alter my conclusions in respect of the ASVI.

23. Bringing the above matters together in respect of the purposes of the ASVI, whilst the proposal would not contribute to the coalescence of Godalming and Farncombe, it would fail to maintain and enhance the appearance of an area of open land that stretches into the urban area. The introduction of a large building on a mainly undeveloped site close to the river would harm the setting of the river and the adjacent boat house, to the detriment of views from the River Wey and the Lammas Lands, the value of which are set out in the NP's character area assessment. I have had careful regard to the fallback position of the extant permission for an office building, but it carries limited weight for the reasons I have set out. Consequently, the proposal would harm the appearance of the ASVI and adversely affect the character of the settlement.
24. I therefore conclude that the proposal would conflict with policies RE3 and TD1 of the LPP1, policies DM1, DM4 and DM7 of the Waverley Borough Local Plan Part 2: Site Allocations and Development Management Policies March 2023 (LPP2) and Policy GOD5 of the NP. Together these policies set out the Council's approach to maintaining and enhancing the appearance of ASVIs, by requiring new development to respond to the local context as described in the NP's character area assessments, which includes scale, landscape form and views.

Flood risk

25. The proposal is for a residential use, which Planning Practice Guidance (PPG) identifies as a more vulnerable use. Environment Agency (EA) mapping places the site partly within Flood Zone 2 and partly within Flood Zone 3, giving it a medium to high probability of river flooding. It has not been confirmed whether any part of the site is within the functional floodplain (Flood Zone 3b), where the PPG advises that more vulnerable uses are incompatible.
26. In accordance with the PPG, the application was accompanied by a flood risk assessment which incorporated sequential and exception tests. The Council has not commented on the sequential assessment in its submissions and, in the absence of evidence to the contrary, I am bound to accept the appellant's finding that the development could not be located in an area with a lower risk of flooding.
27. The exception test requires that the development provide wider sustainability benefits to the community that outweigh the flood risk, and to be safe for its lifetime taking account of the vulnerability of its users without increasing flood risk elsewhere. The Council currently has a housing land supply shortfall, and the proposal is to utilise a sustainably-located site which includes previously developed land to provide a range of dwelling sizes which responds to the Council's identified needs. I am satisfied therefore that the sustainability benefits of the proposal outweigh the flood risk.
28. In respect of the second part of the test, it is not in dispute between the main parties that the building would be constructed above the estimated flood level for a 1 in 100 year event taking account of climate change, and would not therefore be at risk of flooding. During a flood event, residents would be able to evacuate the site via a bridged connection to Catteshall Road, part of which is within Flood Zone

1 and therefore has a low probability of river flooding. The EA considered that there would be a potential danger to the elderly and infirm during an evacuation, and consequently that the access was not safe. However, on the basis of the appellant's modelling showing very low to no risk on this section of Catteshall Road, I am satisfied that safe access could be provided during a flood event.

29. To compensate for flood storage which would be lost following the construction of the building, the proposal originally included voids beneath the building, but because the PPG is clear that such techniques should not normally be relied upon for compensating for any loss of floodplain storage, the proposal evolved during negotiations with the Council to show existing site levels being lowered in the area of the proposed car park. The storage thus created was designed to compensate for the difference in flood storage between the unimplemented office building and the proposal. I have set out above the limited weight which attaches to the fallback position. Even though the site is not on the direct flow route for flood waters, and surface water would be adequately managed, the appellant's approach would not fulfil the PPG requirement to provide on-site level-for-level compensatory storage for loss of flood storage², and consequently would increase flood risk elsewhere.
30. As I have described already, the proposal would involve reclaiming a section of the River Wey to create a buffer between the proposed building and the river. The appellant indicated that the ground level of the reclaimed land would be set at the existing water level, meaning that in flood conditions any flood waters would still be able to flood this area. However, the cross section of the new river bank prepared by the appellant appears to show the reclaimed land sloping up from the high water line of the river, which could indicate a loss of flood storage. There is therefore a risk that the proposed reclamation works would further reduce the volume of storage in this area and so increase the risk of flooding.
31. I therefore find that the proposal would not be safe for its lifetime without increasing flood risk elsewhere, and would fail the exception test. It would therefore have an adverse effect on flood risk. In making this finding, I have had regard to the fact that Surrey County Council as lead local flood authority (LLFA) did not object to the proposal. As the LLFA's role in relation to the proposal is advisory and not statutory, I have placed limited weight on its position compared with that of the EA.
32. I conclude that the proposal would conflict with policies NE2, CC1 and CC4 of the LPP1, which together seek to minimise the risk from flooding whilst not increasing flood risk elsewhere by, amongst other things, applying the exception test in locations identified as being at risk of flooding, and having regard to the implications of climate change and the need to protect existing river corridors.

Integrity of the SNCI

33. The River Wey and River Wey – South SNCI is a local wildlife site containing a rich diversity of aquatic and marginal flora, placing it in the top 10% of all UK watercourses. It also contains dense in-stream fauna. The proposal would involve infilling a marginal backwater of the river. Policy NE1 of the LPP1 states that development adjacent to locally designated sites will not be permitted where it has an adverse impact on the integrity of the nature conservation interest.

² Paragraph: 049 Reference ID: 7-049-20220825

34. The application was accompanied by a river condition assessment designed for use in biodiversity net gain calculations. The assessment found that the aquatic species in the marginal backwater were common and widespread, and that consequently the proposal would not impact on the river's important aquatic marginal flora assemblage. A potential impact on in-stream fauna such as young fish and invertebrates using the shallow water to shelter was identified, and mitigation in the form of submergent vegetation as part of a planting scheme was recommended.
35. Surrey Wildlife Trust (SWT) objected on the basis of the potential impact on in-stream fauna. However, as the proposal would not harm the aquatic and marginal flora for which the SNCI is designated, any resulting adverse impact on the integrity of the nature conservation interest would be negligible and would not justify withholding planning permission.
36. The potential impact of the proposal on the Wey Valley Meadows Site of Special Scientific Interest (SSSI) was raised by SWT. The assessment noted that, whilst infilling of the marginal backwater could result in a small increase in the river current which could in turn slightly increase the risk of flooding of the SSSI, the species within the SSSI thrive on waterlogged habitats. It is not therefore critical to understanding the likely impact of the proposal on the SSSI to know the construction methodology for the infilling work. On the basis of the evidence before me, the proposal would not have an adverse impact on the integrity of the SSSI.
37. I conclude that the proposal would not have an adverse effect on the integrity of the SNCI and would accord with policies NE1 and NE2 of the LPP1 and Policy DM1 of the LPP2, which together protect locally designated sites from adverse impacts on the integrity of their nature conservation interest, including maintaining appropriate buffer zones beside rivers.

Living conditions

38. Policy LRC1 of the LPP1, whilst not referred to in the reason for refusal, sets out by reference to the Fields in Trust standards the Council's expectation for play space provision in new residential development, including that schemes of five or more dwellings must be within 100m accompanied walking distance of a Local Area for Play (LAP). Whilst there is open space within 100m of the site at the Lammas Lands, and recreation grounds further away, there is no LAP within the required distance. Consequently, the proposal is required to include a LAP, which it does not, and as a result it makes inadequate provision for play space.
39. Policy DM5 of the LPP2 sets out the Council's requirements for external space. Where communal outdoor space is proposed, 15 sqm of outdoor is required per flat plus a private balcony for each flat measuring at least 1.5m by 2.0m. The communal space shown in front of the proposed flats on Catteshall Road satisfies the Council's minimum requirements and, although it would not be private, I consider it acceptable having regard to the presence of the extensive Lammas Lands within easy walking distance of the site. Several balconies shown on the original plans lacked the required depth, but the amended plans show balconies of sufficient size. I am satisfied therefore that the proposal includes sufficient outdoor space. In reaching this conclusion, I have not had regard to the proposed landscape buffer beside the river, since it is unclear whether it would be available for recreational use.

40. The Council raised a concern that flat F3 was a single aspect unit which, owing to its orientation, would not receive direct sunlight, and would not therefore provide adequate living conditions. The amended plans showed additional windows which provided the flat with a second aspect, thereby ensuring that direct sunlight would reach it, and improving ventilation. Consequently, I am satisfied that future occupiers would benefit from adequate living conditions.
41. The plans showed flat F4 having two of its three bedrooms facing towards the wooded area behind the site. A shared access to the river was proposed next to these bedrooms, which the Council feared would impact on the privacy of occupiers, despite the main living rooms of the flat facing towards the river. However, as it is not certain that the land beside the river could be used as outdoor space, it is unlikely that the access would be used frequently. Provided careful attention was paid to boundary treatment, which could be dealt with by condition were I minded to allow the appeal, an appropriate balance could be struck between protecting the privacy of occupiers and maintaining the outlook from the bedrooms.
42. In conclusion, whilst flats F3 and F4 would benefit from adequate sunlight and privacy respectively, and the proposal makes suitable provision for outdoor space in accordance with Policy DM5 of the LPP2, it provides inadequate play space. As a result, it would not provide suitable living conditions for future occupiers, contrary to policies LRC1 and TD1 of the LPP1, which together aim to improve the quality of life of future residents through, amongst other things, the provision of on site play space.

Planning Balance

43. The site is within a settlement where Policy S4 of the Framework applies. Therefore, development should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in this Framework.
44. The Framework sets out the circumstances in which the benefits of approving development are likely to be substantially outweighed by adverse effects, which include but are not restricted to the situations listed in Policy S4(2). Although none of the situations listed in the policy apply to the proposal, I am nonetheless required to consider whether the benefits of the proposal would be substantially outweighed by the harm I have identified to the character and appearance of the area, flood risk and living conditions.
45. Policy HO7 of the Framework requires substantial weight to be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community, as identified through needs assessments prepared for the area of the local planning authority and other relevant evidence. The Council confirmed that it cannot demonstrate a five year supply of housing land, with the main parties agreeing that the Council's current housing land supply is 1.28 years. As the proposal would follow the approach set out in the HDS by providing homes which would contribute towards meeting the evidenced accommodation needs of the community, substantial weight is given to this benefit.
46. Policy L2 encourages the effective use of land and requires substantial weight to be given to the benefits of making better use of vacant and underutilised land. The proposal would utilise a sustainably located site which includes previously

developed land. It would provide social benefits in the form of smaller dwelling units which would meet local needs, and economic benefits during construction and from future residents making use of local services. For the reasons set out, I have given limited weight to the extant permission for an office building and, whilst the proposal would reduce flood risk to the extent that it would be at a higher level than the office building would be, it would introduce more vulnerable users into an area at risk of flooding which the office building would not. The fact that the Council found that the public benefits of housing would outweigh the harm to a heritage asset is neutral.

47. Policy DP3 sets out key principles for well-designed places, by requiring proposals to respond to their context including their setting, in order to integrate with their surroundings and thereby maintain a strong sense of place. My conclusions regarding the proposal's adverse impact on the character and appearance of the area, resulting from the introduction of a dominant building into a sensitive part of the Godalming ASVI, show that these requirements would not be satisfied. In these circumstances, Policy DP3(3) states that proposals should be refused if, without clear justification, they conflict with these requirements.
48. Policy F7 seeks to ensure that development is safe from flooding, by requiring that where development is proposed in a location known to be at risk from any form of flooding, it is demonstrated that, amongst other things, flood risk will not be increased elsewhere. In light of my conclusion that the proposal would have an adverse effect on flood risk as a consequence of increasing flood risk elsewhere, this requirement would not be satisfied. Policy F7(2) requires that proposals should be refused in these circumstances.
49. Policy HC3 requires proposals for housing which would give rise to significant numbers of additional people living in an area to be informed by an understanding of the need for associated improvements to community facilities, and to provide for new community facilities which are necessary for the development to be acceptable in planning terms. As there is an identified need for a LAP which the proposal does not meet, it would result in unsatisfactory living conditions.
50. The benefit resulting from the proposal's contribution to meeting evidenced housing need, along with the other benefits outlined above, attracts substantial weight. Set against this, the harms I have identified would have a significant adverse effect. National decision-making Policy DP3 directs refusal in instances where proposals conflict with the Framework's key principles for well-designed places, whilst Policy F7 directs refusal where flood risk would be increased elsewhere. I conclude that the benefits of approving development would be substantially outweighed by the adverse effects.

Conclusion

51. For the above reasons, the proposal conflicts with the development plan, when read as a whole. Material considerations do not indicate that a decision should be taken other than in accordance with the development plan. I therefore conclude that the appeal should be dismissed.

J Heppell

INSPECTOR